

KNOW YOUR RIGHTS

Legal Notice & Procedural Compliance Brief

1. Document Summary

Category: Police & Criminal Process

Sub-type: FIR copy served to accused / FIR registered in criminal case

Assessment: This is a First Information Report (FIR) filed under Section 173 BNSS documenting a criminal complaint involving rioting, property damage, and criminal intimidation with one accused apprehended at the scene.

Severity of Procedural Compliance Violations

■ **Critical — Rights Likely Violated**



1 check(s) could not be verified from the information given.

■ **DEFAULT BAIL: Compliant**

No chargesheet filed yet. Default bail becomes available on 20-09-2026 if chargesheet is not filed before then — 32 days remain (60-day window; offence up to 5 years; ASSUMED as one day after arrest (production date not stated in document) — verify against the actual remand order).

2. Procedural Compliance Findings

S.35(3) BNSS notice before arrest [Arnesh Kumar (2014) / Satender Kumar Antil, 2026 INSC 115]

Status: **Not Applicable**

Arrest is authorised under S.35(1)(a) BNSS — the offence was committed in the presence of a police officer. No prior S.35(3) notice is required on this limb. IMPORTANT: this exception holds only if that fact is genuinely established on the record — verify from the case record that it is actually documented.

Threshold basis for arrest without warrant [cognizability of the offence]

Status: **Non-Compliant**

The cited offence(s) are recorded as NON-COGNIZABLE in the statutory reference table. Ordinarily, police have no general power to arrest without a warrant for a non-cognizable offence — such an arrest is a threshold defect independent of whether a S.35(3) notice was served. A small number of specific statutes carve out exceptions permitting warrantless arrest even for particular non-cognizable matters; verify from the case record whether such a specific exception applies here before treating this as conclusive.

Written grounds of arrest furnished to arrestee [Prabir Purkayastha (2024) / Vihaan Kumar, 2025 INSC 162]

Status: **May be Non-Compliant**

The document does not mention of written grounds of arrest recorded being furnished. Per Vihaan Kumar (2025 INSC 162): failure to furnish written grounds violates Article 22(1), renders the arrest itself illegal, and is a ground for bail even where statutory bail restrictions exist — the burden is on the

state to prove grounds were furnished.

Arrest memo attested by witness, family informed, medical exam [DK Basu (1997)]

Status: **Non-Compliant**

D.K Basu items missing: witness attested, family informed, medical exam recorded.

Woman not arrested between sunset and sunrise [S.46(4) CrPC/ Sheela Barse]

Status: **Not Applicable**

Arrestee is not female.

Female officer involved in custody/interrogation of female arrestee [Sheela Barse (1983)]

Status: **Not Applicable**

Arrestee is not female.

Produced before magistrate within 24 hours [Art. 22(2)/S. 58 BNSS]

Status: **Cannot Determine**

Production-before-magistrate time not stated in this document.

Default bail on chargesheet delay [S.187 BNSS / S.167(2) CrPC]

Status: **Compliant**

No chargesheet filed yet. Default bail becomes available on 20-09-2026 if chargesheet is not filed before then — 32 days remain (60-day window; offence up to 5 years; ASSUMED as one day after arrest (production date not stated in document) — verify against the actual remand order).

Overall Assessment: 3 procedural defect(s) found or suspected. Arrest may be legally vulnerable.

3. Missing or Unclear Information

- No specific evidence or supporting documents are referenced or attached to substantiate the allegations (e.g., photographs of damage, witness statements, medical examination if injuries occurred)
- The characterization of 'wooden sticks' as 'deadly weapons' under Section 191(3) is not explained or justified; the legal basis for this classification is unclear
- The identity of '4-5 unidentified persons' remains vague with no description provided to aid investigation or identification
- No specific threats or words of intimidation are quoted or detailed; the nature and content of the alleged threats under Section 351(2) are not specified
- The basis for the complainant's authority to file the FIR on behalf of the 'Fancy Bazar Traders' Association' is not established
- No statement or corroboration from other affected shopkeepers is mentioned, despite the narrative indicating multiple shops were damaged
- The investigating officer's plan or timeline for identifying the remaining 10-11 accused persons is not outlined

5. Documents to Gather

- Copy of the FIR (if registered)
- Any written notice received from police (Section 35/41A, Section 94/91)
- Identity proof
- Names and badge numbers of investigating officers, if known
- Any prior correspondence with the police station

This brief is generated by an automated analysis tool and does not constitute legal advice. Findings marked 'May be Non-Compliant' are inferences drawn from the absence of information in the source document, not confirmed violations. Consult a qualified advocate before taking any legal action.